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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

**v.**

CSAA Insurance Exchange;  
and DOES 1 through 50, inclusive;

**DEFENDANTS**

**Case No.: CGC-25-631802**

**MEMORANDUM OF POINTS  
AND AUTHORITIES**

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## **AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO ACCEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under California Rules of Court, rule 3.1113; California Rules of Court, rule 3.1110, subdivision (b); Code of Civil Procedure section 1005, subdivision (b); and Code of Civil Procedure section 425.16, subdivision (b)(2).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.
4. The Court's authority to consider the substance is under *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986 to 987, and *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181; *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057; *Aubry v. Tri-City Hospital District* (1992) 2 Cal.4th 962, 966 to 967; and *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569.
5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order.

## **I. INTRODUCTION**

This memorandum asks the Court to do something narrow and equitable. It asks the Court to take judicial notice of identified court records from related case CGC-25-631801 under Evidence Code sections 452, subdivisions (d) and (h), and 453, and to apply judicial estoppel under *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986 to 987, to bind Defendant CSAA Insurance Exchange (CSAA) at the June 24, 2026 hearing to the substantive positions on which Department 301 granted the 801

1 special motion to strike on May 12, 2026.

2 The 801 record CSAA prevailed on rests on a single substantive proposition. The challenged  
3 conduct, including possession, retention, transfer, production, and court-facing statements about  
4 the 911 audio, body-worn camera footage, and computer aided dispatch records (collectively, the  
5 “silent-witness materials”), was adopted by the defense as the protected gravamen of Plaintiff’s  
6 801 claims, performed by CSAA-funded counsel acting within the scope of the underlying defense,  
7 and protected as such under Code of Civil Procedure section 425.16, subdivisions (e)(1) and (e)(2).  
8 That is the position CSAA’s counsel advanced. That is the position Department 301 accepted. That  
9 is the position now binding on CSAA in this Department under judicial estoppel principles.

10 CSAA cannot, in this courtroom, take positions inconsistent with that 801 victory. Yet that is  
11 precisely what CSAA’s pending 802 anti-SLAPP, demurrer, and section 436 motions do. The 802  
12 papers say CSAA had “no role” in the underlying litigation, that Plaintiff cannot know what steps  
13 CSAA took in any investigation, that the same statements 801 protected as factual petitioning are  
14 not factual representations at all but mere “interpretation,” that no investigative duty exists, and that  
15 the 9-3 underlying defense verdict cleanly vindicates the February 25, 2021 denial letter. Those  
16 propositions are inconsistent with the 801 victory and may not, as a matter of equity and judicial  
17 integrity, be used by CSAA to obtain a second favorable disposition in this Department.

18 The Court need not, and Plaintiff does not ask the Court to, decide the truth of any disputed factual  
19 recital in the 801 papers, or the truth of the underlying merits in 802. Plaintiff asks only that  
20 the inconsistent legs of CSAA’s pending 802 motions be denied or disregarded so that the 802  
21 motions stand or fall on grounds consistent with the 801 victory. Where the 801 victory rested on  
22 the proposition that CSAA spoke in court through its institutional defense, the 802 motion may  
23 not now succeed on the proposition that CSAA never spoke. Where the 801 victory rested on the  
24 proposition that the same materials were possessed, retained, transferred, and produced as litigation  
25 activity, the 802 motion may not now succeed on the proposition that the same materials were never  
26 obtained. Separately, where the 801 record relied on defense’s affirmative representations to the  
27 underlying trial court that the 911 audio, body-worn camera footage, and computer aided dispatch  
28 records had unknown provenance and were not produced in discovery, the 802 motion may not now

succeed on the proposition that CSAA reviewed those same materials before issuing the February 25, 2021 denial letter. The lock-points, set out in section VII below, capture the resulting limits. This memorandum does not claim that every quoted factual recital in the 801 papers became true as a matter of law. It claims that CSAA selected the quoted pleaded acts as the protected gravamen on which it sought and obtained anti-SLAPP relief, and that having done so CSAA is bound by that gravamen selection in this Department. The distinction matters: estoppel flows from CSAA's adoption of Plaintiff's described conduct as protected petitioning, not from a ruling that CSAA's in-court statements were literally true. CSAA's pending 802 motions also ask this Department to credit a completed, regulation-compliant investigation that reviewed the available evidence, and that 802 theory cannot coexist with the noticed MIL 6 and MIL 17 truth-claims that the same silent-witness materials had unknown provenance and were not produced in discovery.

## **II. PROCEDURAL POSTURE AND THE MAY 12, 2026 ACCEPTANCE**

A. The 801 case (CGC-25-631801, Dept. 301, Hon. Christine Van Aken) and the 802 case (this case, CGC-25-631802, Dept. 302, Hon. Joseph M. Quinn) are related under California Rules of Court, rule 3.300. They share the same insured (Subhi Abdelhalim), the same incident date (February 4, 2021), the same denial letter (February 25, 2021), and the same physical evidentiary nucleus (the silent-witness materials). The same firm, Porter Scott, A Professional Corporation, signs the operative defense papers in both cases through Chad S. Tapp (SBN 214898) and Tyler J. O'Connell (SBN 346673), among others.

B. On April 9, 2026, the 801 defendants (CSAA, Carbone, Smith & Koyama, LLP and Michael R. Chambers; Phillips, Spallas and Angstadt, LLP, Priya D. Navaratnasingham and Alberto Reyna) filed a special motion to strike under Code of Civil Procedure section 425.16, supported by a Memorandum of Points and Authorities (the "801 Anti-SLAPP MPA"). On April 13, 2026, those same defendants filed a demurrer in 801, supported by its own MPA (the "801 Demurrer MPA"). On May 5, 2026, those same defendants filed a reply in support of the 801 anti-SLAPP motion (the "801 Anti-SLAPP Reply"). On May 12, 2026, Department 301 issued a minute order granting the 801 anti-SLAPP motion and striking the operative pleading (the "May 12 Order").

C. In the 802 case, CSAA filed its own special motion to strike, demurrer, and section 436 motion

1 on April 9, April 13, and April 22, 2026, respectively, with reply papers filed May 5 and May 6,  
2 2026. Those motions, together with Plaintiff's pending motions under Code of Civil Procedure  
3 sections 128.7, 425.16(g), and 1008(b), are set for the consolidated June 24, 2026 hearing line in  
4 this Department.

5 D. Department 302's May 13, 2026 minute order continued the 802 motion calendar to the June 24  
6 line and directed all parties to provide courtesy copies under San Francisco Local Rule 2.7B. This  
7 memorandum is filed in conformity with that direction and addresses only matters now before this  
8 Department on June 24, 2026.

9 E. The May 12 Order is a court record of which judicial notice is proper under Evidence Code  
10 section 452, subdivision (d). The 801 Anti-SLAPP MPA, the 801 Demurrer MPA, and the 801  
11 Anti-SLAPP Reply are likewise court records of which judicial notice is proper under Evidence  
12 Code section 452, subdivision (d), as records of a court of this state. (See *Aaronoff v. Martinez-*  
13 *Senftner* (2006) 136 Cal.App.4th 910, 919.) Plaintiff's accompanying Supplemental Request for  
14 Judicial Notice (filing item 04) tenders these records and identifies them by docket sequence num-  
15 bers and source paths so the Court may verify each item from the official record.

16 F. The underlying CGC-21-594102 record also contains Defendant Subhi Abdelhalim's Motion in  
17 Limine No. 6 (Tx 80936030, filed January 17, 2025) and Motion in Limine No. 17 (Tx 80936053,  
18 filed January 17, 2025). Those motions are court records subject to judicial notice under Evi-  
19 dence Code section 452, subdivision (d), and Plaintiff tenders them only for their existence, filing,  
20 contents, legal effect, and defense litigation positions, not for the truth of any disputed factual  
21 assertion.

### 22 **III. LEGAL FRAMEWORK**

#### 23 **A. JUDICIAL ESTOPPEL (*AGUILAR* / *JACKSON* FIVE-FACTOR TEST)**

24 Judicial estoppel is an equitable doctrine that prevents a party from gaining advantage by taking  
25 one position in one proceeding and then taking a contrary position in another. The doctrine "is  
26 intended to protect against a litigant playing fast and loose with the courts." (*Jackson v. County*  
27 *of Los Angeles* (1997) 60 Cal.App.4th 171, 181; accord *Aguilar v. Lerner* (2004) 32 Cal.4th 974,  
28 986.) It applies where:

- 1 1. the same party has taken two positions;
- 2 2. the positions were taken in judicial or quasi-judicial administrative proceedings;
- 3 3. the party was successful in asserting the first position (i.e., the tribunal adopted the position
- 4 or accepted it as true);
- 5 4. the two positions are totally inconsistent; and
- 6 5. the first position was not taken as a result of ignorance, fraud, or mistake.

7 (*Aguilar*, supra, 32 Cal.4th at 986 to 987; *Jackson*, supra, 60 Cal.App.4th at 183.)

8 For anti-SLAPP prong one, defense did not need to admit the truth of Plaintiff's factual allegations.  
9 But defense did something equally binding for judicial-estoppel purposes: it selected the pleaded  
10 acts as the acts giving rise to liability, characterized those acts as protected petitioning and litigation  
11 conduct, and obtained relief on that characterization. For demurrer, by contrast, well-pleaded facts  
12 are accepted as true for purposes of testing legal sufficiency. The present motion relies on the first  
13 mechanism, position adoption and gravamen selection in 801, not on the second.

14 Judicial estoppel applies across separate but related actions involving the same defendants and the  
15 same represented interests. (*People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210  
16 Cal.App.4th 487, 503; *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1468 to 1471 [related-case  
17 estoppel where a party prevailed on a prior factual position].) Counsel's positions are imputed to  
18 the represented client. (*Daar & Newman v. VRL International* (2005) 129 Cal.App.4th 482, 491.)  
19 Privity is sufficient where present; complete identity of parties is not required. (*Strathmann*, supra,  
20 210 Cal.App.4th at 503.) Here, CSAA was a moving party on the 801 anti-SLAPP and is the mov-  
21 ing party on the 802 motions. Carbone, Smith & Koyama, LLP, Michael R. Chambers, Phillips,  
22 Spallas and Angstadt, LLP, Priya D. Navaratnasingham, and Alberto Reyna were CSAA-funded  
23 counsel acting within the scope of the underlying defense; their 801 positions are imputed to CSAA  
24 under *Daar & Newman* by reason of CSAA's funding role and shared institutional interest, and by  
25 CSAA's joinder as a moving party in the 801 motion to strike.

26 The legal predicates of judicial estoppel are reviewed de novo, and application is reviewed for  
27 abuse of discretion. (*Aguilar*, supra, 32 Cal.4th at 986 to 987.)

## **B. ANTI-SLAPP GRAVAMEN (*PARK*)**

Under *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060, the anti-SLAPP analysis turns on “what ‘the defendant’s activity is that gives rise to his or her asserted liability,’ ” and asks “whether that activity constitutes protected speech or petitioning.” Where the speech or petitioning activity itself is the wrong complained of, the motion proceeds to prong two; where it is merely incidental to other allegations, the motion fails on prong one. (*Park*, supra, 2 Cal.5th at 1062 to 1063; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393 to 394 [allegations of protected activity that are merely context cannot be stricken].)

*Park* matters here for a single reason. In 801, the defense persuaded Department 301 that the speech and litigation conduct identified in the operative pleading (in-court statements about possession of the silent-witness materials, file transfers, and similar defense-team conduct) is the “wrong complained of” within *Park*. CSAA cannot, in 802, simultaneously argue that the same speech is not the wrong complained of, or that CSAA never engaged in any speech at all.

## **C. THE DEMURRER-ADMISSION RULE AND ANTI-SLAPP POSITION ADOPTION (*AUBRY / BLANK / PARK*)**

A demurrer accepts properly pleaded material facts for the limited purpose of testing legal sufficiency. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966 to 967; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) That demurrer rule does not convert anti-SLAPP prong one into an admission of factual truth. For anti-SLAPP prong one, defense did not need to admit the truth of Plaintiff’s factual allegations. But defense did something binding for judicial-estoppel purposes: it selected the pleaded acts as the acts giving rise to liability, characterized those acts as protected petitioning and litigation conduct, and obtained relief on that characterization. For Code of Civil Procedure section 436, the motion likewise tests the legal effect of the challenged pleading matter. Plaintiff relies on CSAA’s adopted protected-gravamen position and operative motion premise, plus demurrer acceptance where applicable, not on any rule that an anti-SLAPP motion admits factual truth.

If CSAA characterizes its 801 anti-SLAPP positions as merely hypothetical or arguendo, that re-

1 sponse defeats its 802 demurrer. It means the factual questions of agency, ratification, direction  
2 of counsel, investigation steps, and reliance on the defense-file chain remain unresolved. Under  
3 *Aubry* and *Blank*, those well-pleaded allegations must be accepted as true for demurrer purposes.  
4 CSAA cannot avoid estoppel by calling its 801 position hypothetical, then ask this Court to resolve  
5 the same factual disputes in its favor on demurrer.

#### 6 **D. JUDICIAL NOTICE SCOPE (EVIDENCE CODE SECTIONS 452,** 7 **453)**

8 Plaintiff's tender of the 801 filings and the May 12 Order is squarely within Evidence Code section  
9 452, subdivision (d), which permits judicial notice of records of any court of this state. Plaintiff  
10 also invokes section 452, subdivision (h), for matters not reasonably subject to dispute and capable  
11 of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.  
12 Plaintiff's request complies with section 453 by giving the Court and CSAA notice and supplying  
13 the noticed materials.

14 Plaintiff does not ask the Court to take judicial notice of the truth of every factual recital inside the  
15 noticed records. (See *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569 [judicial notice  
16 extends to the existence of court records and orders, not to the truth of disputed factual assertions  
17 therein].) The judicial-notice request goes only to the existence, filing, contents, legal effect, and  
18 adopted litigation positions reflected in the records. The judicial estoppel application is then a  
19 separate equitable inquiry the Court performs on the noticed record.

20 By this filing, Plaintiff places before this Department the express statutory and rules authority for  
21 each accompanying paper. Plaintiff's authority to file each paper, and the Clerk's authority to  
22 accept it, are set forth in each paper's Authority to File section and rest on Code of Civil Proce-  
23 dure sections 1005, 1010, 1010.6, 1014, and 2015.5; California Rules of Court, rules 1.21, 2.100  
24 through 2.111, 2.118, 2.119, 2.256, 2.257, 3.1110, 3.1113, 3.1306, and 3.1312; Evidence Code  
25 sections 451, 452, and 453; and Government Code sections 68150 and 69845. No paper in this  
26 cohort is filed under any unenumerated or extra-judicial authority.



### III-A. THE ANTI-SLAPP TRAP: DEFENSE ADOPTED THE PLEADED ACTS AS THE PROTECTED GRAVAMEN

CSAA cannot avoid estoppel by arguing it merely quoted Plaintiff's allegations. The 801 anti-SLAPP motion used those quoted pleaded acts as the operative conduct satisfying prong one of Code of Civil Procedure section 425.16.

Specifically, the 801 Anti-SLAPP MPA, April 9, 2026, at lines 1258 to 1274, tells Department 301: 'all the alleged activities against these moving Defendants arise from Defendants' pre-trial investigation and litigation activity. That activity includes gathering evidence in discovery, maintaining that evidence, transferring files to substituted counsel, and engaging in pre-litigation investigations.'

This is not passive quotation. This is CSAA's counsel selecting the described acts, including gathering evidence, maintaining evidence, transferring files, and making in-court representations, as the conduct that satisfies the protected-activity prong. Department 301 accepted that characterization and granted the motion. Under *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060 to 1063, prong one turns on 'what the defendant's activity is that gives rise to his or her asserted liability' and 'whether that activity constitutes protected speech or petitioning.' By framing those activities as protected litigation conduct connected to CSAA's institutional defense posture, CSAA adopted the legal nexus it now disowns. CSAA cannot now tell Department 302 that it had no litigation role, that any defense-team nexus is improper imputation, or that Plaintiff's pleading fails because CSAA was only a disconnected funder.

### IV. THE ACCEPTED 801 POSITIONS

The 801 record CSAA prevailed on rests on the following sub-positions, each drawn from the noticed 801 filings and each accepted by Department 301 on May 12, 2026:

**Position 1: The challenged conduct is litigation conduct, not commercial activity.** The 801 Anti-SLAPP MPA, April 9, 2026, at p. 9 (lines 1258 to 1274), states that "all the alleged activities against these moving Defendants arise from Defendants' pre-trial investigation and litigation activity," including "gathering evidence in discovery, maintaining that evidence, transferring files to

1 substituted counsel, and engaging in pre-litigation investigations.” The 801 Demurrer MPA, April  
2 13, 2026, at p. 4 (lines 681 to 690), confirms that “Plaintiff’s allegations focus on Defendants’  
3 acquisition, retention, and production of this material evidence, during the course of pre-trial dis-  
4 covery.”

5 **Position 2: CSAA spoke in court through its institutional defense.** The 801 Anti-SLAPP MPA  
6 at p. 6 (lines 1040 to 1042) treats as protected “CSAA Insurance Exchange[’s] . . . multiple false  
7 and misleading representations to the Court about receipt, possession, and prior production of the  
8 materials.” Those representations are described as “memorialized in written motions in limine and  
9 in open court statements.” The 801 motion thus immunized CSAA-imputed in-court speech.

10 **Position 3: The in-court statements were factual representations under section 425.16, sub-**  
11 **divisions (e)(1) and (e)(2).** The 801 Anti-SLAPP MPA at pp. 9 to 11 (lines 1258 to 1290) treats  
12 the in-court representations about “receipt, possession, and prior production” of the silent-witness  
13 materials as statements within section 425.16, subdivisions (e)(1) and (e)(2), made “in connection  
14 with an issue under consideration or review by a judicial body.” Those statements are statements  
15 of fact, not non-statements; that is what the anti-SLAPP statute requires.

16 **Position 4: Possession, retention, and transfer of the silent-witness materials are protected**  
17 **litigation conduct.** The 801 Anti-SLAPP MPA at p. 6 (lines 1065 to 1072) recites and immunizes  
18 the FAC’s allegation that “CARBONE and CHAMBERS ‘had possession of the defense file when  
19 the 911 audio, body-worn camera footage, and CAD materials were served on defense counsel  
20 during discovery.’” The 801 Anti-SLAPP Reply, May 5, 2026, at p. 3, confirms that the file  
21 transfer is “communicative” conduct within the anti-SLAPP statute.

22 **Position 5: The investigation underlying the institutional defense is knowable through the**  
23 **defense file.** The 801 Anti-SLAPP MPA at p. 6 (lines 1067 to 1070) recites and immunizes the FAC  
24 allegation about the May 4, 2023 file transfer from CHAMBERS to PSA “without ensuring proper  
25 documentation and conveyance of the production history to successor counsel.” That recitation  
26 presupposes that the institutional file is knowable and that its production history is the subject of  
27 litigation conduct.

28 **Position 6: CSAA’s institutional defense affirmatively represented in MIL 6 and MIL 17 that**

1 **the silent-witness materials had unknown provenance and were not produced in discovery.**  
2 MIL 6, filed January 17, 2025 as Tx 80936030 in CGC-21-594102, is titled “MOTION IN LIM-  
3 INE NO. 6 TO EXCLUDE RECORDED MATERIALS, PHOTOGRAPHS, OR DOCUMENTS  
4 OFFERED BY PLAINTIFF THAT WERE NOT PRODUCED IN DISCOVERY.” MIL 6 page 2  
5 Section II.A is headed “Recorded Material, Photographs, Videos, Or Documents Offered by Plain-  
6 tiff That Were Not Produced In Discovery Should Be Excluded,” and MIL 6 page 3, lines 1 to 5,  
7 asks the trial court to “exclude all documents and evidence, including but not limited to videos,  
8 photographs, recorded materials, tangible items, or documents including audio of a 911 call pur-  
9 ported to be related to the incident, Plaintiff’s documents showing past and future wage loss or  
10 other evidence that Plaintiff has failed to produce in discovery.” MIL 17, filed January 17, 2025  
11 as Tx 80936053 in CGC-21-594102, similarly states at page 3, lines 1261 to 1262: “First, this al-  
12 leged log and recording were not produced during discovery, rather produced at the eleventh hour  
13 prior to trial”; at page 3, lines 1264 to 1265: “Defendant has no idea where this 911 call log or  
14 audio recording came from and who created it”; at page 4, lines 1312 to 1313: “Defendant has no  
15 idea who created the log and recording, how they were maintained, how Plaintiff got them, or the  
16 identity of the custodian of the log and recording”; and at page 4, lines 1313 to 1314: “It does not  
17 appear that either the log or the recording were obtained via proper subpoena process.”

18 **Position 7: CSAA invoked a constructive petitioning nexus between itself and defense-team**  
19 **litigation conduct.** The 801 Anti-SLAPP MPA at p. 11 (lines 1418 to 1424) argues that “even if  
20 CSAA did ratify PSA’s litigation tactics of seeking to exclude evidence from trial,” that activity,  
21 including “an insurance carrier directing its defense counsel to file motions in limine,” would be  
22 protected litigation activity. That position did not require Department 301 to find that CSAA  
23 actually directed counsel. It did require CSAA to treat pleaded defense-team litigation conduct as  
24 legally connected to CSAA’s own protected petitioning posture.

25 These sub-positions are the substantive premises of the May 12 Order. They are accepted by the  
26 May 12 Order. They are now binding on CSAA in this Department under *Aguilar* and *Jackson* by  
27 reason of CSAA’s joinder, funding, privity, and same-counsel posture.

## V. THE INCONSISTENT 802 POSITIONS

Set against the 801 record, CSAA's 802 motions take the following inconsistent positions, each drawn verbatim from the noticed 802 filings (see filing item 07 for full quotations):

**Inconsistency A: "No role" in litigation.** Section III.D of the 802 Anti-SLAPP MPA and 802 Demurrer is captioned: "DEFENDANT CSAA INITIALLY DENIED PLAINTIFF'S CLAIM AND SUBSEQUENTLY HAD NO ROLE IN LITIGATION, ASIDE FROM RETAINING INSURANCE DEFENSE COUNSELS AND FUNDING THE DEFENSE." The 802 Demurrer MPA, April 13, 2026, at p. 14 (lines 1921 to 1927), adds: "CSAA . . . did not actually litigate the trial."

**Inconsistency A-1: No constructive petitioning nexus.** The 802 Demurrer MPA, April 13, 2026, at p. 14 (lines 1925 to 1927), asserts that "Plaintiff's FAC improperly imputes the acts of retained insurance defense counsel" to CSAA. That position disowns the legal nexus and protected-gravamen posture CSAA invoked in 801 when it treated defense-team litigation conduct as protected petitioning connected to CSAA's institutional defense.

**Inconsistency B: Same statements are non-factual "interpretation."** The 802 Demurrer MPA, April 13, 2026, at p. 9 (lines 1364 to 1374), recharacterizes the same in-court statements as "not . . . knowingly false representations" but only "a good faith dispute over the interpretation of evidence and liability."

**Inconsistency C: Materials never obtained by CSAA.** The 802 Anti-SLAPP MPA, April 9, 2026, at p. 5 (lines 901 to 905), and the 802 Demurrer MPA, April 13, 2026, at p. 5 (lines 885 to 905), recite, without denial, that the silent-witness materials are evidence "CSAA had failed to obtain" before the February 25, 2021 denial letter.

**Inconsistency D: No investigative duty.** The 802 Demurrer MPA, April 13, 2026, at p. 10 (lines 1511 to 1525), states: "the Code imposes no duty on CSAA (a third party in the original matter) to provide evidence from their investigation into the event involving their insured." Yet the 802 Anti-SLAPP MPA, April 9, 2026, at p. 9 (lines 1224 to 1232), simultaneously says CSAA "had a duty to promptly investigate Plaintiff's then-pending claim, as codified in Insurance Code section 790.03 and 10 California Code of Regulations section 2695.7," and "complied" with that duty.

**Inconsistency E: Investigation steps are "unknowable."** The 802 Anti-SLAPP Reply, May 5/6,

2026, at p. 5 footnote 2, says: “Plaintiff has no way of knowing what steps Defendant CSAA took in investigating the claim. All Plaintiff has to cite is the denial letter itself.” The same defense, in the same week, told Department 301 the institutional file (including the May 4, 2023 file transfer and “production history”) is litigation conduct CSAA controls.

**Inconsistency F: Investigation completeness contradicts MIL truth-claims of nonproduction and unknown provenance.** See Super Rank 0A below for the full cross-time contradiction between the 802 investigation-completeness theory and the MIL 6 and MIL 17 truth-claims noticed as Exhibits 801-G and 801-H. Rank 2 below addresses only the three internal 802 investigation postures.

Each Inconsistency A through F directly contradicts at least one of the accepted 801 sub-positions identified in section IV above. The contradictions are not stray. They are structural across four serial 802 briefs by the same counsel and cannot be the product of mistake or inadvertence within the meaning of *Aguilar*, supra, 32 Cal.4th at 986 to 987.

## **VI. APPLICATION OF JUDICIAL ESTOPPEL (SUPER RANKS AND RANK-ORDERED 1 THROUGH 7)**

Plaintiff applies the doctrine to seven specific contradiction nodes, ranked in descending severity by the degree to which CSAA’s adopted 801 protected-gravamen positions conflict with its 802 litigation positions. Each node is keyed to the verbatim quotations in filing item 07. The Layer B MIL truth-claim contradiction is added as Super Rank 0A because it is the cleanest substantive truth-claim bar, independent of any arguendo characterization of the 801 anti-SLAPP motion. The constructive petitioning nexus contradiction is preserved as Super Rank 0B because it is the cleanest legal-nexus bar. These two Super Ranks appear before Rank 1 and do not renumber the existing seven ranks.

For each rank below, filing item 07 supplies the verbatim 801 and 802 passages, plus a short interpretive paragraph headed “Implied admission and binding effect in CGC-25-631802” that identifies the adopted 801 motion premise, the inconsistent 802 position, the doctrinal consequence, and the specific 802 motion or argument that fails or is limited as a result. Plaintiff respectfully requests that the Court consider each rank with the corresponding implied-admission paragraph,

1 which Plaintiff offers as doctrinal synthesis and not as a request for judicial notice of any disputed  
2 fact.

3 **Super Rank 0A: 802 investigation-completeness theory versus MIL truth-claims of nonpro-**  
4 **duction and unknown provenance in 801 (Layer B).**

5 **802 operative position (2026).** CSAA’s pending 802 motions ask this Department to credit a  
6 completed pre-denial investigation. The 802 Anti-SLAPP MPA says CSAA “reviewed the avail-  
7 able evidence, including the statements of its Insured, and reached a prompt denial position,” then  
8 invokes Insurance Code section 790.03 and 10 California Code of Regulations section 2695.7 to  
9 say CSAA “had a duty to promptly investigate” and “complied” with that duty. The 802 CCP 436  
10 motion adds that “CSAA reached a different conclusion from the evidence,” that “the jury reached  
11 the same conclusion that CSAA reached in its investigation,” and that “CSAA performed an inves-  
12 tigation, determined that its insured was not liable, and informed Plaintiff of their decision.”

13 **802 pleading consequence.** The FAC recital that CSAA had not obtained or reviewed “basic,  
14 readily obtainable, and foundational objective liability evidence,” including the 911 audio, body-  
15 worn camera footage, and CAD, remains part of the 802 pleading posture the Court must accept  
16 as alleged on demurrer. That readily-obtainable bridge is developed further in Rank 2 below,  
17 but it matters here because the 802 motions ask the Court to credit a “concluded” and compliant  
18 investigation while the pleaded 802 record says the most basic objective sources were still not  
19 obtained or reviewed.

20 **Prior binding litigation position.** Against that 802 position, the underlying trial record tendered  
21 here as Exhibits 801-G and 801-H shows defense’s prior truth-claims in MIL 6 and MIL 17. MIL  
22 6 sought exclusion of materials “THAT WERE NOT PRODUCED IN DISCOVERY” and asked  
23 the trial court to “exclude all documents and evidence, including but not limited to videos, pho-  
24 tographs, recorded materials, tangible items, or documents including audio of a 911 call purported  
25 to be related to the incident . . . that Plaintiff has failed to produce in discovery.” MIL 17 then  
26 stated that the 911 log and recording “were not produced during discovery,” that “Defendant has  
27 no idea where this 911 call log or audio recording came from and who created it,” and that Defen-  
28 dant had no idea who created or maintained them or whether they were obtained through proper

1 subpoena process.

2 **Doctrinal bridge (investigation-duty overlay).** The contradiction is not that Insurance Code  
3 section 790.03 creates a separate third-party tort duty to hand Plaintiff evidence. Plaintiff does  
4 not make that argument, and Lock-Point 5 remains narrow on that point. The contradiction is that  
5 CSAA's 802 litigation theory asks this Department to credit a regulation-compliant, fair-claims  
6 investigation that supposedly reviewed the available evidence and reached a reasoned denial, while  
7 the noticed MIL record preserved the opposite truth-claim about the same silent-witness category.  
8 Invoking section 790.03 and section 2695.7 in 802 is therefore an adopted litigation position about  
9 investigation content and reasonable inquiry, not merely background law.

10 **Contradiction, estoppel, and 802 ruling implication.** These positions cannot stand together on  
11 the same record. If the silent-witness materials were treated in the underlying trial court as not pro-  
12 duced in discovery, of unknown provenance, and unsupported by a known custodian or subpoena  
13 process, Department 302 cannot simultaneously credit the 802 contention that those same mate-  
14 rials were part of the available evidence reviewed in a completed pre-denial investigation. This  
15 Super Rank is Layer B and remains independently binding even if CSAA characterizes Layer A as  
16 arguendo. Any favorable 802 ruling that credits the investigation-completeness leg of the pending  
17 anti-SLAPP, demurrer, or CCP 436 motions would contradict the noticed MIL truth-claims and is  
18 barred through Lock-Point 0.

19 **Super Rank 0B: Constructive Petitioning Nexus, Invoked In 801 And Disowned In 802.**

20 The single highest-impact contradiction in the record is not about possession or investigation. It is  
21 about the legal nexus CSAA used to place defense-team litigation conduct within its own protected  
22 petitioning posture.

23 In 801, CSAA's counsel told Department 301, at lines 1418 to 1424 of the 801 Anti-SLAPP MPA  
24 (April 9, 2026): 'even if CSAA did ratify PSA's litigation tactics of seeking to exclude evidence  
25 from trial, that activity would be protected litigation activity.' CSAA cannot avoid estoppel by  
26 calling that argument "even if," hypothetical, or arguendo. To obtain anti-SLAPP relief for itself  
27 in 801, CSAA had to treat pleaded defense-team conduct as legally connected to its own protected  
28 petitioning posture.

1 In 802, the same counsel tells Department 302: ‘DEFENDANT CSAA INITIALLY DENIED  
2 PLAINTIFF’S CLAIM AND SUBSEQUENTLY HAD NO ROLE IN LITIGATION, ASIDE FROM  
3 RETAINING INSURANCE DEFENSE COUNSELS AND FUNDING THE DEFENSE.’ (802  
4 Anti-SLAPP MPA, April 9, 2026, Section III.D heading, lines 837 to 840.) The 802 Demurrer  
5 MPA, April 13, 2026, at lines 1925 to 1927, adds: ‘CSAA . . . did not actually litigate the trial.  
6 Indeed, Plaintiff’s FAC improperly imputes the acts of retained insurance defense counsel, against  
7 Defendant.’

8 The contradiction: in 801, CSAA obtained anti-SLAPP protection by treating the pleaded defense-  
9 team conduct as legally connected to CSAA’s own protected petitioning posture. In 802, CSAA  
10 seeks demurrer dismissal by portraying the same defense-team conduct as disconnected from  
11 CSAA and improperly imputed to it. The binding point is CSAA’s institutional posture, not a  
12 factual admission that CSAA actually directed counsel. CSAA cannot be a petitioning participant  
13 for 801 immunity and a passive disconnected funder for 802 dismissal.

14 **Rank 1: Same in-court statements, simultaneously factual petitioning and non-factual “inter-**  
15 **pretation.”** The 801 victory rests on the proposition that in-court statements about “receipt, pos-  
16 session, and prior production” of the silent-witness materials were statements of fact within section  
17 425.16, subdivisions (e)(1) and (e)(2). The 802 demurrer recharacterizes those same statements as  
18 “not . . . knowingly false representations” but mere “good faith dispute over the interpretation of  
19 evidence.” Both characterizations cannot stand on the same record.

20 **Rank 2: Pre-suit investigation, in three mutually exclusive postures.** Super Rank 0A addresses  
21 the separate cross-time contradiction between the MIL truth-claims and the 802 investigation-  
22 completeness theory. Rank 2 addresses only the three internal 802 postures. The 802 papers say  
23 simultaneously that (i) CSAA reviewed the available evidence and complied with a statutory duty  
24 to investigate; (ii) the FAC recital that CSAA “had not obtained or reviewed” the foundational  
25 evidence is taken as alleged for purposes of every motion; and (iii) Plaintiff cannot know what  
26 steps CSAA took. Three positions cannot stand on the same record.

27 **Rank 3: Possession of the silent-witness materials, simultaneously inside and outside the**  
28 **defense file.** The 801 record protects “acquisition, retention, and production” of the silent-witness



1 materials as protected litigation activity. The 802 record relies on the proposition that the same  
2 materials were never obtained by CSAA. The same physical objects cannot have two chains of  
3 custody at the same moment.

4 **Rank 4: Same jury, simultaneously deprived of and provided with the same evidence.** The  
5 801 Anti-SLAPP MPA at p. 3 (lines 729 to 738) and the 802 Anti-SLAPP MPA at p. 4 (lines 716  
6 to 734) say the same items “were presented to” or “submitted to” the jury. The 802 Demurrer MPA  
7 at p. 5 (lines 891 to 895) recites without denial the FAC’s “deprived of foundational evidence”  
8 allegation. Both cannot stand on the same record.

9 **Rank 5: CSAA simultaneously spoke and did not speak in court.** The 801 Anti-SLAPP MPA  
10 at p. 6 (lines 1040 to 1042) immunizes “CSAA Insurance Exchange[’s] . . . multiple false and  
11 misleading representations to the Court.” The 802 papers, under the Section III.D heading and at  
12 p. 14 of the demurrer, say CSAA “did not actually litigate the trial.” Anti-SLAPP immunity cannot  
13 attach to speech that did not occur.

14 **Rank 6: No Investigation-File Erasure Bar.** Plaintiff does not contend that Insurance Code  
15 section 790.03 creates the same duty as a tort duty to provide evidence to a third party. The  
16 estoppel point is narrower: CSAA invoked a compliant, privileged investigation process when  
17 it needed immunity, then tried to erase the procedural consequences of that same investigation  
18 process when Plaintiff challenged the denial letter. CSAA may not use the existence and legitimacy  
19 of its investigation as a shield while treating the contents and steps of that investigation as legally  
20 irrelevant or unknowable.

21 **Rank 7: Chain of custody simultaneously knowable and unknowable.** The 801 record treats  
22 the May 4, 2023 file transfer and the failure to convey “production history” as “communicative”  
23 conduct CSAA controls. The 802 reply at p. 5 footnote 2 says Plaintiff has no way of knowing what  
24 CSAA did. The defense file cannot be both knowable enough to immunize 801 and unknowable  
25 enough to defeat 802.

26 Each rank independently satisfies the *Aguilar / Jackson* five-factor test. Taken cumulatively, the  
27 two Super Ranks and seven ranks confirm that the contradictions are structural, not stray, and  
28 dispose of any *Aguilar* factor-five argument that the prior position was the product of mistake. The

1 Court may apply the doctrine on either Super Rank, any one rank, or all seven ranks; Plaintiff  
2 respectfully submits that all are properly before the Court on the noticed record.

## 3 **VII. FIVE LOCK-POINTS**

4 The application of judicial estoppel produces concrete operative limits (“lock-points”) on what  
5 CSAA may argue at the June 24 hearing:

6 **Lock-Point 0 (No MIL-Reversal Bar).** CSAA may not assert that it reviewed or possessed the  
7 silent-witness materials before the February 25, 2021 denial letter. The 801 record contains de-  
8 fense’s affirmative representations in MIL 6 (page 3, lines 1 to 5) and MIL 17 (page 3, lines 1261  
9 to 1265 and page 4, lines 1312 to 1314) that those materials had unknown provenance and were  
10 not produced in discovery, and defense obtained an evidentiary exclusion ruling on the premise  
11 that those representations were truthful, not merely protected. Department 302 therefore may not  
12 credit the investigation-completeness leg of CSAA’s pending 802 motions where that credit would  
13 contradict the MIL 6 and MIL 17 truth-claims vouched for exclusion in the noticed record.

14 **Lock-Point 1 (No-litigation-role bar).** CSAA may not argue that it had no role in the under-  
15 lying litigation. The 801 victory rests on the proposition that CSAA spoke in court through its  
16 institutional defense and that the defense team’s possession, retention, transfer, and production of  
17 the silent-witness materials are litigation conduct attributable to CSAA. Section III.D of the 802  
18 anti-SLAPP and demurrer, and the demurrer text at p. 14 (lines 1921 to 1927), are inconsistent  
19 with that 801 victory and may not be used to support the pending 802 motions.

20 **Lock-Point 1A (Constructive Petitioning Bar).** CSAA may not deny the legal nexus between  
21 itself and the defense team’s litigation conduct after relying on that nexus to obtain anti-SLAPP  
22 protection in 801. The bar does not require a finding that CSAA actually directed counsel; it  
23 prevents CSAA from disowning the institutional petitioning posture it used to secure relief. The  
24 802 no-role heading and the 802 demurrer’s improper-imputation argument may not be used to  
25 defeat the pleaded defense-team nexus at the pleading stage.

26 **Lock-Point 2 (No-unknowable-investigation bar).** CSAA may not argue that Plaintiff has “no  
27 way of knowing what steps Defendant CSAA took in investigating the claim.” The 801 victory  
28 presupposes a knowable defense file (the May 4, 2023 file transfer, the production history, the in-

1 court representations about possession and production). The 802 reply footnote 2 may not be used  
2 to defeat any 802 motion.

3 **Lock-Point 3 (No-interpretation rebrand bar).** CSAA may not argue that the in-court statements  
4 about “receipt, possession, and prior production” of the silent-witness materials were not factual  
5 representations but mere “good faith dispute over the interpretation of evidence.” The 801 victory  
6 rests on those statements being factual statements within section 425.16, subdivisions (e)(1) and  
7 (e)(2). The 802 demurrer p. 9 recharacterization may not be used to support the 802 demurrer or  
8 the 802 anti-SLAPP.

9 **Lock-Point 4 (No-clean-verdict-vindication bar).** CSAA may not argue that the underlying 9-3  
10 defense verdict cleanly validates the February 25, 2021 denial letter. The 801 record protected  
11 the institutional defense team’s possession, retention, transfer, and production of the silent-witness  
12 materials as litigation conduct. CSAA may not now claim a clean verdict to dispose of fraud alle-  
13 gations whose evidentiary predicates are the very same materials whose handling was the subject  
14 of the 801 victory.

15 **Lock-Point 5 (No Investigation-File Erasure Bar).** Plaintiff does not contend that Insurance  
16 Code section 790.03 creates the same duty as a tort duty to provide evidence to a third party. The  
17 estoppel point is narrower: CSAA invoked a compliant, privileged investigation process for im-  
18 munity, then tried to erase the procedural consequences of that same investigation process when  
19 Plaintiff challenged the denial letter. CSAA may not use the existence and legitimacy of its inves-  
20 tigation as a shield while treating the contents and steps of that investigation as legally irrelevant  
21 or unknowable.

## 22 **VIII. REQUESTED RELIEF**

23 Plaintiff respectfully requests that the Court, at the June 24, 2026 hearing:

24 A. Take judicial notice under Evidence Code sections 452, subdivisions (d) and (h), and 453, of  
25 the existence, filing, contents, and legal effect of the noticed 801 records identified in filing item  
26 04 (the Supplemental Request for Judicial Notice), including the 801 Anti-SLAPP MPA (April 9,  
27 2026), the 801 Demurrer MPA (April 13, 2026), the 801 Anti-SLAPP Reply (May 5, 2026), and  
28 the May 12, 2026 minute order of Dept. 301;

1 B. Find, on the face of those noticed records, that CSAA successfully advanced the 801 sub-  
2 positions identified in section IV above and that Department 301 accepted those positions on May  
3 12, 2026;

4 C. Apply judicial estoppel under *Aguilar* and *Jackson* to deny or disregard the inconsistent 802  
5 anti-SLAPP, demurrer, and section 436 arguments to the extent they depend on the propositions  
6 identified in section V above and limited by the lock-points in section VII above;

7 D. Alternatively, if the Court declines to apply judicial estoppel because it views CSAA's positions  
8 as permissible alternative arguments, deny the 802 demurrer and anti-SLAPP motion to the extent  
9 they depend on resolving the same factual disputes in CSAA's favor. At minimum, the unresolved  
10 issues of agency, ratification, investigation steps, possession history, and reliance on court-facing  
11 evidence representations cannot be resolved against Plaintiff on demurrer, and they defeat CSAA's  
12 attempt to convert its alternative litigation positions into dispositive pleading-stage findings; and

13 E. Enter the proposed order at filing item 06, or any narrower form of relief consistent with the  
14 analysis above, including, in the alternative, an order limiting the inferences the Court may draw  
15 from the noticed 802 papers in resolving the pending motions.

16 For the foregoing reasons, the cross-case judicial estoppel framework binds CSAA at the June 24  
17 hearing to the 801 positions Department 301 accepted on May 12, 2026, and forecloses CSAA's  
18 reliance on inconsistent positions in the pending 802 motions.

Dated: June 24, 2026



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